Texas Workforce Commission - Request for Offers No. 320AWARE

Proprietary Analytics Software

1. **PURPOSE:** The purpose of this Request for Offers (RFO) is to solicit offers from vendors listed on the Centralized Master Bidders List (CMBL) approved by the Texas Comptroller of Public Accounts (CPA) for the acquisition of Aggregate Workforce Analytics Reporting Engine (AWARE).

2. **PROPRIETARY PURCHASE:**
The issuing office believes that the requested items in this RFO may be proprietary to one vendor under Texas Government Code 2155.067; however the issuing office strongly encourages offers from all qualified respondents that may be able to provide the requested items.

3. **AUTHORIZED PROCUREMENT CONTACT:** The individual listed below may be contacted for clarification of this Request for Offers (RFO) solicitation and the required response submission process. No authority is intended or implied that this solicitation may be amended or alternates accepted prior to submission deadline without written approval of TWC.

Contact Name:	Glenn Smith
Title:	Purchaser, CTPM
Street Address:	1117 Trinity Street, Room 316-T, Austin, Texas, 78701
E-mail:	glenn.smith@twc.state.tx.us

Other Communication: Communication with any TWC personnel regarding this solicitation other than the Authorized Procurement Contact listed is prohibited. Failure to follow this provision may be grounds for disqualification. Respondents desiring further information or interpretation of this solicitation (including clarification of discrepancies or omissions) must submit questions in writing to the Authorized Procurement Contact. Telephone inquiries will not be acceptable.

4. **SUBMITTAL INFORMATION:** Send original (clearly indicated as such) of your completed offer in a sealed envelope via US MAIL to:

Texas Workforce Commission
Attn: Procurement & HUB Services
101 E. 15th Street, Room 316T
Austin, TX 78778-0001

For hand-deliveries only:
1117 Trinity, Room 316T
Austin, TX 78701

4.1. Due date & time: All responses must be received no later than 10:00 AM (CT) on (06/07/2016).

5. **PROPRIETARY SUMMARY/ EVALUATION CRITERIA:**

Texas Workforce Commission purchased the fraud detection and prevention tool Aggregate Workforce Analytics Reporting Engine (AWARE) from On Point Technologies (Identity Theft FraudX) that utilizes data analytics of claimant and initial claim filing data to identify trends associated with fraudulent activity. The Identity Theft FraudX tool uses proprietary software and algorithm combination to analyze 14,000 initial claims weekly to identify ID theft cases by providing a predictive analytical score that helps TWC investigators target high risk identity theft fraud cases before payout. Consequently, TWC has prevented millions of dollars in losses to the UI Trust Fund. This tool has successfully predicted and helped TWC identify ID theft fraud cases before losses could occur. Since January 2015, TWC detected and prevented $50.13 million in UI Trust Fund payout on 6,883 claims using claimant and initial claim data alone.

A recent study of continued claims shows that TWC can increase the effectiveness of detecting ID theft cases not currently identified by the Identity Theft FraudX algorithm. Enhancing the detection algorithm and including data associated with any post-initial claim contact by the filer would prevent an estimated $633,693 more in fraudulent payments annually.

On Point Technology, LLC built and maintains the AWARE ID Theft FraudX algorithm and is the only company that licenses, installs, and supports this software application. Support is provided through On Point's Assurance and Certification Program (ACP), which is only available through On Point Technology. On Point retains all right, title, and interest in any of the Software, the Services, the On Point Confidential Information, and any derivative work. On Point Technology reserves all rights of ownership of all AWARE source code and all software upgrades or modifications to the product which can only legally be performed by On Point Technology, LLC.

5.1. **Screening and Evaluation Criteria:** An award will be made based upon what TWC considers to be the offer providing the Best Value to the agency. In determining the Best Value, TWC will consider factors including, but not limited to, the following.

5.1.1. Initial price of product/service, installation cost and overall life-cycle costs.

5.1.2. Compatibility with TWC architecture.

5.1.3. Capacity for expansion and upgrade.

5.1.4. Extent of training/retraining of staff needed.

5.1.5. Compliance with applicable Department of Information Resources (DIR) statewide standards, (TAC 202 and 208).

5.1.6. Comparable Experience. Experience with similar projects, particularly experience with other government agencies, will be considered.

5.1.7. Strength of references. Due to the urgency of this request, TWC will only allow 2 days for verifying references. Any reference who does not respond in the allotted time provided by TWC will result in a score of zero.

Texas Workforce Commission – Terms & Conditions (04/15/2016)

ATTACHMENT I

By responding to the solicitation or fulfilling the awarded Purchase Order (PO), the vendor agrees to the terms and conditions below, which apply to and become a part of every Texas Workforce Commission (TWC) purchase. Only mutual written exceptions will be valid. Where a purchase is made without the Invitation for Bids (IFB); Request for Offers (RFO) or Request for Proposals (RFP) process, "IFB/ RFO/RFP" equates to "Purchase Order" and "Bidder/ Offeror/Proposer" equates to "Vendor". Any specification in the solicitation that is in conflict with these standard terms and conditions takes precedence. All references to "days" shall be calendar days unless specified otherwise.

1. SOLICITATION RESPONSE REQUIREMENTS

1.1. **Written Specifications**: TWC will not be bound by any oral statement or representation contrary to the written specifications contained in the solicitation.

1.2. **Incomplete Responses:** Late, illegible, incomplete and/or unsigned responses may be deemed non-responsive and may not be considered.

1.3. **Freight:** Prices quoted are to include freight prepaid, F.O.B. Destination (Free on Board). Enter unit price on quantity and unit of measure specified - extend and show total. In case of errors in extension, unit prices shall govern.

1.4. **Firm Pricing:** Prices submitted are expected to be firm for TWC acceptance for thirty (30) days from the solicitation deadline. "Discount from list" offers are not acceptable unless specifically requested. Cash discounts will not be considered in determining the low offer. All cash discounts submitted will be taken if earned. Prices must remain firm for the duration of the term of the PO/contract.

1.5. **Ties**: In the case of tie bids, the award will be made in accordance with the preferences listed under 34 TAC Rule 20.38.

1.6. **Preferences:** In making an award, TWC shall apply the preferences listed at 34 Texas Administrative Code (TAC) § 20.38. For purchase or lease of computer equipment TWC shall apply a preference for manufacturers that have a computer recycling program as described in 1 TAC § 217.11.

1.7. **Bid Alteration/Withdrawal:** A submitted response to a solicitation cannot be altered or amended after the solicitation deadline, except by formal negotiation via the RFO/RFP processes. Any alteration made before the solicitation deadline is to be initialed by vendor or the vendor's authorized agent. Vendors are not allowed to withdraw their submitted response after the solicitation deadline without approval by TWC.

1.8. **Rejection of Bids:** In accordance with Texas Government Code § 2156.008, TWC reserves the right to reject a bid in which there is a material failure to comply with specification requirements. TWC may reject all bids or parts of bids if the rejection serves the state's best interest.

1.9. **Tax Exempt:** Purchases made for State use are exempt from the State Sales tax and Federal Excise tax. Do not include tax in bid. Excise Tax Exemption Certificates are available upon request.

1.10. **Other Entities:** TWC requests that the vendor extends the same contract prices and conditions to Local Workforce Development Boards (LWDB) and Child Care Management Services (CCMS) entities contractually linked with TWC if awarded the contract.

1.11. **Identify All Parties:** TWC requires all business partners, equipment, support or maintenance providers who will perform under an awarded contract to be identified prior to contract award for TWC approval. Substitutions of providers shall be submitted in writing for TWC approval during the term of the agreement.

1.12. **No Travel:** TWC will not reimburse a vendor for travel and expenses unless specifically provided for in the contract documents. In that event, such reimbursement will not exceed the state travel reimbursement rates and limits established by the then current General Appropriations Act.

2. GENERAL CONDITIONS

2.1. **Damage to Grounds and Buildings:** Vendor shall be financially responsible for any or all damage done by its employees, agents and subcontractors to the TWC grounds and buildings. Vendor is responsible for the removal of all debris resulting from work performed under the contract.

2.2. **Disclosure of Information:** TWC, the Comptroller General of the United States, or any of their duly authorized representatives shall have access to any books, documents, papers and records which are directly pertinent to this procurement.

2.3. **Texas Public Information Act:**

2.3.1. Information, documentation, and other material in connection with this solicitation or any resulting contract may be subject to public disclosure pursuant to Texas Government Code, Chapter 552 (the "Public Information Act").

2.3.2. All information submitted in response to the solicitation is subject to public disclosure pursuant to the Public Information Act. In the event of a request for information pertaining to the solicitation, TWC will comply with the provisions of the Public Information Act to protect the interests of the State of Texas. The Public Information Act allows the public to have access to information in the possession of a governmental body. Therefore, the vendor must clearly identify any confidential or proprietary information on the page on which it appears in the solicitation response and reference the specific exception to disclosure in the Public Information Act. Proprietary information identified by the vendor in advance will be kept confidential to the extent permitted by state law. Any information not clearly identified as confidential or proprietary shall be deemed to be subject to disclosure pursuant to the Public Information Act.

2.3.3. All information, documentation and other material in connection with the solicitation or any resulting contract will be retained by TWC for the period specified in the Records Retention Schedule created under Texas Government Code, Chapter 441. The information will not be returned to the vendor who submitted it during the retention period time.

2.3.4. Vendor is required to make any public information created or exchanged with the state pursuant to any contract with TWC, and not otherwise excepted from disclosure under the Texas Public Information Act, available in a format that is accessible by the public at no additional charge to TWC.

2.4. **Award of Contract:**

2.4.1. Responding to a solicitation is an offer to contract with the State based upon the terms, conditions, and specifications contained in the solicitation. Submitted responses do not become contracts unless and until they are accepted and an award is made by TWC Procurement and Hub-Services and a PO is issued to the vendor.

2.4.2. TWC reserves the right to negotiate price and terms with any and all vendors, to accept or reject all or any part of a vendor's response, waive minor technicalities, to request Best and Final Offers from all or any vendors, and make an award that represents Best Value to the agency or the State.

2.4.3. Subsequent to award, TWC may, at its sole option, request the vendor to negotiate contract amendments or renewals as is determined to be in the best interest of the agency or the State.

2.4.4. TWC reserves the right to use a third party to negotiate price related to any Information Technology solicitation or contract.

2.4.5. TWC reserves the right to make an award on the basis of low line item bid, low total of line items, or in any other combination that will serve the best interest of the State and to reject any and all bid items in the sole discretion of the State.

2.5. **Vendor Assignments:** No assignment is permitted the vendor without prior written consent of TWC. Any written request for assignment must be accompanied by written acceptance of the assignment by the assignee. Except where otherwise agreed in writing by TWC, assignment will not release vendor from its obligations pursuant to the contract.

2.6. **TWC Assignments:** TWC may sub-lease or assign equipment and related services provided via the contract to other entities which contract with TWC to provide agency support or services.

2.7. **Indemnification:** The vendor shall defend, indemnify, and hold harmless the State of Texas, all of its officers, agents and employees from and against all claims, actions, suits, demands, proceedings, costs, damages, and liabilities, including without limitation attorneys' fees and court costs, arising out of, connected with, or resulting from any acts or omissions of vendor or any agent, employee, subcontractor, or supplier of vendor in the execution or performance of the contract. Vendor shall coordinate its defense with the Texas Attorney General as requested by TWC.

2.8. **Vendor Performance:** In accordance with Texas Government Code §§ 2155.074 and 2155.075, vendor performance may be used as a factor in the award.

2.9. **Force Majeure:** TWC may grant relief from performance of an awarded contract or PO, or extend a performance period, if the vendor is prevented from compliance and performance by an act of war, order of legal authority, act of God, or other unavoidable cause not attributable to the fault of the vendor. If the vendor requests the relief, the burden of proof for the need of such relief shall rest upon the vendor, who must file a written request for such release or extension. If TWC grants such relief due to circumstances known by the agency, the agency must document such reasons in the contract file.

2.10. **Dispute Resolution Procedures:**

2.10.1. **Procurement Disputes:** Any actual or prospective vendor who is aggrieved in connection with the solicitation, evaluation, or award of a contract may formally protest to the Deputy Executive Director. Such protests must be made via certified mail and received in the appropriate Director's office within ten (10) business days from the date of the announcement of the award. The written protest must include: the number of the solicitation being protested; the grounds for the protest, including a description of any alleged acts or omissions by TWC that form the basis for the protest; any written information which the protestor believes is relevant to the award; and the basis for the protestor's interest in the procurement.

TWC will make available to the protestor all requested documents not exempted from disclosure under Texas and federal law. TWC will provide copies of these documents upon payment of the fees adopted by TWC for record duplication. The protestor will be provided an opportunity for an informal meeting with the Director or his designee, to discuss the protest, however, TWC may limit the amount of time allocated for the meeting. The Director will issue the final written decision to the protestor.

2.10.2. **Contract Disputes:** TWC follows the dispute resolution process provided for in Texas Government Code, Chapter 2260 to resolve contract disputes.

2.11. **Debt to the State:** Vendor agrees that any payments due under this contract will be applied towards any debt including, but not limited to, delinquent taxes and child support that is owed to the State of Texas.

2.12. **Hold-Over Provision:** In the event contract renewal negotiations are not completed prior to the contract expiration date, both parties agree that services shall be provided by the vendor and accepted by TWC , subject to all original terms and conditions of the contract, for a period not to exceed ninety (90) days following the original contract expiration date. The hold-over service costs shall be the pro-rated rates in effect immediately prior to such expiration. Such hold-over agreement shall not be interpreted to extend the term of the original contract. TWC may terminate such hold-over service by providing written notice of cancellation not less than ten (10) business days prior to the cancellation date.

2.13. **State Auditor Rights:** In accordance with Texas Government Code § 2262.003, vendor understands that acceptance of funds directly under the contract or indirectly through a subcontract under the contract acts as acceptance of the authority of the State Auditor's Office, or any successor agency, to conduct an audit or investigation in connection with those funds. Vendor further agrees to cooperate fully with the State Auditor's Office or its successor in the conduct of the audit or investigation, including providing all records requested. Vendor will ensure that this clause concerning the authority to audit funds received indirectly by subcontractors through vendor and the requirement to cooperate is included in any subcontract it awards.

2.14. **Limitation on TWC's Liability:** TWC will not be liable for any incidental, indirect, special, or consequential damages under contract, Tort, (including negligence), or other legal theory. TWC's liability to vendor under the contract will not exceed the total charges to be paid by TWC to vendor under the contract.

2.15 **State Ownership:** The Parties agree that TWC will own all right, title and interest in and to the work products including deliverables, source and object code and documentation developed by the vendor in connection with the contract.

2.15.1 All work products including deliverables, source and object code and documentation, in whole or in part, will be deemed works made for hire of TWC for purposes of copyright law and copyright will belong solely to TWC.

2.15.2 To the extent that any such work product or deliverable does not qualify as a work made for hire under applicable law, and to the extent that the deliverable or work product includes materials subject to copyright, patent, trade secret, or other proprietary right protection, vendor agrees to assign, and hereby assigns, all right, title, and interest in and to the work products and deliverables, including without limitation all copyrights, inventions, patents, trade secrets, and other proprietary rights therein (including renewals thereof) to TWC.

2.15.3 Vendor will assist TWC or its nominees to obtain copyrights, trademarks, or patents for all such work products or deliverables in the United States and any other countries. Vendor agrees to execute all papers and to give all facts known to it necessary to secure United States or foreign country copyrights and patents, and to transfer to TWC all the right, title, and interest in and to such work products or deliverables. Vendor agrees to not assert any moral rights under applicable copyright law with regard to such work products and deliverables.

2.15.4 Vendor agrees to reproduce and include TWC's copyright and other proprietary notices and product identifications provided by vendor on such copies, in whole or in part, or on any form of the work products or deliverables.

2.16 **License:** In accordance with 29 Code of Federal Regulations § 97.34, all appropriate State and Federal agencies will have a royalty-free, nonexclusive, and irrevocable license to reproduce, publish, translate or otherwise use, and to authorize others to use for State or Federal purposes all materials, deliverables and work products, including software and modifications thereof, and associated documentation designed, developed, or installed with Federal Financial Participation under the contract, including but not limited to those materials covered by copyright, all source and object code, instructions, files, and documentation composing the system.

2.17 **Most Favored Customer:** If during the term of the contract, the vendor enters into another contract with any customer for substantially similar services at prices more favorable than those provided to TWC, the contract may be amended to provide the more favorable prices to TWC.

2.18 **Governing Law and Venue:** The contract shall be executed in and governed, construed and interpreted under the laws of the state of Texas. Vendor agrees that proper venue for a claim arising under the contract shall be brought in a court of competent jurisdiction in Travis County, Texas.

2.19 **Severability:** If any provision of the contract is construed to be illegal or invalid, such provision shall be deemed stricken and deleted to the same extent and effect as if never incorporated into the contract, but all other provisions shall remain in full force and effect.

2.20 TWC and the vendor must adhere to the directions in the President's Executive Order (EO) 13224, Blocking Property and Prohibiting Transactions With Persons Who Commit, Threaten to Commit, or Support Terrorism.

This Executive Order prohibits any transaction or dealing by United States persons, including but not limited to the making or receiving of any contribution of funds, goods, or services to or for the benefit of those persons listed in the General Services Administration's Excluded Parties List System (EPLS) which may be viewed on the System for Award Management (SAM) site at http://www.Sam.gov.

2.21 **No Waiver**: Nothing in this contract shall be construed as a waiver of the TWC's or the State's sovereign immunity. This contract shall not constitute or be construed as a waiver of any of the privileges, rights, defenses, remedies, or immunities available to the TWC or the State of Texas. The failure to enforce, or any delay in the enforcement, of any privileges, rights, defenses, remedies, or immunities available to TWC or the State of Texas under this contract or under applicable law shall not constitute a waiver of such privileges, rights, defenses, remedies, or immunities or be considered as a basis for estoppel. TWC does not waive any privileges, rights, defenses, or immunities available to TWC by entering into this contract or by its conduct prior to or subsequent to entering into this contract.

2.22 **Redacted Electronic Copy:** Under House Bill 3430, 80th Texas Legislature, (transferring Texas Government Code § 2177.052, to Texas Government Code, Chapter 322, and redesignating it as § 322.020) and as per the following requirements, no later than two (2) business days after vendor's receipt of notice from TWC , the vendor must deliver to TWC two (2) electronic copies of its complete proposal. Vendor shall deliver these electronic copies to TWC via overnight delivery in compliance with all of the following requirements:

2.22.1 Two (2) compact discs (CDs), each containing a copy of vendor's response to solicitation, in searchable Portable Document Format (PDF) format, which has excised, blacked out, or otherwise redacted information from its solicitation response that vendor reasonably considers to be confidential and exempt from public disclosure under the Texas Public Information Act, Chapter 552 of the Texas Government Code (this should be a de minimis portion, if any, of vendor's solicitation response, such as social security numbers). Each CD shall also contain an Appendix for vendor's solicitation response which provides a cross reference for the location of all information redacted by vendor and a general description of the redacted information. These two (2) identical CDs should be entitled "For Public Release: Redacted Version of [Name of Vendor]'s Proposal and Exhibits. Texas Workforce Commission's RFP/RFO/IFB solicitation No. ____."

2.22.2 Per Texas Government Code § 322.020, the Texas Legislative Budget Board (LBB) has now implemented a major contracts database.

2.22.3 TWC shall upload to the LBB's contracts database the text of the complete contract (with limited redaction and appendix) no later than ten (10) days after date of contract award. By submitting a response to this solicitation, vendors acknowledge that they understand and accept this requirement. See the LBB website at <http://www.lbb.state.tx.us/>.

2.22.4 **American Recovery and Reinvestment Act (ARRA or the Recovery Act)**

a) Buy American Requirements for Construction Material prohibits the use of funds appropriated for the Recovery Act for any project for the construction, alteration, maintenance, or repair of a public building or public work unless all of the iron, steel, and manufactured goods used in the project are produced in the United States.

b) Whistleblower Protection: Pursuant to Section 1553 of the American Recovery and Reinvestment Act, vendors shall promptly refer to the U.S. Department of Labor, Office of Inspector General any credible evidence that a principal, employee, agent, contractor, sub-recipient, subcontractor, or other person has submitted a false claim under the False Claims Act or has committed a criminal or civil violation of laws pertaining to fraud, conflict of interest, bribery, gratuity, or similar misconduct involving ARRA funds.

2.23 **Background Check**: Vendors must submit criminal background checks on all key personnel assigned to the services related to this solicitation, as authorized by Texas law, and at vendor expense. Key personnel are defined as personnel whose oversight and guidance is essential to the subject services. TWC may provide any finalist for a contract position a Contractor Criminal History Report Investigation Request form P33c which contractor must complete and submit back to TWC as required on the form. To obtain a facility access badge, contractor must provide TWC with either a completed form P-33c or a recent criminal background check within fifteen (15) days of contract award. TWC will not issue a Purchase Order until the criminal background check has been completed and passed.

2.24 **Privacy**: Vendor who has access to sensitive personally identifiable information ("Sensitive PII"), including anyone who views contracts, collects, uses, maintains, stores or destroys Sensitive PII of TWC employees, job seekers, employers, customers or partners, must safeguard that information.

2.24.1 Sensitive PII is anything that alone or in combination with available information can identify an individual, which if lost, compromised, or disclosed without authorization, could result in substantial harm, embarrassment, inconvenience or unfairness to an individual.

2.24.2 Awarded vendor must have a Non-Disclosure Agreement (NDA) on file with TWC prior to handling Sensitive PII.

2.24.3 In order to safeguard Sensitive PII, Awarded vendor must:

2.24.3.1 Collect Sensitive PII only as authorized.

2.24.3.2 Limit the use of Sensitive PII.

2.24.3.3 Minimize the proliferation of Sensitive PII.

2.24.3.4 Secure Sensitive PII both physically and in electronic form.

2.24.3.5 Report suspected privacy incidents within twenty four (24) hours to the TWC Contract Manager or, email the TWC Information Security Office at CISO@twc.state.tx.us.

2.24.4 Awarded Vendor will not transmit Sensitive PII via email or store on CDs, DVDs, thumb drives and the like without prior review and encryption protocol approved by TWC.

2.24.5 Failure to follow these requirements may constitute a breach of contract.

2.25 **Change in Law:** Any alterations, additions, or deletions to the terms of this Contract which are required by changes in federal or state law or regulations are automatically incorporated into this Contract without written amendment hereto, and shall become effective on the date designated by such law or by regulation.

3. REQUIRED CERTIFICATIONS

By responding to this solicitation and accepting the award of a contract or purchase order, vendor certifies to the following:

3.1. **All Terms and Conditions Met:** that all terms and conditions listed in the solicitation will be met.

3.2. **U.S. Department of Homeland Security's E-Verify System:** By entering into this Contract, the Contractor certifies and ensures that it utilizes and will continue to utilize, for the term of this Contract, the U.S. Department of Homeland Security's E-Verify system to determine eligibility of:

3.2.1. All persons employed to perform duties within Texas, during the term of the Contract; and

3.2.2. All persons (including subcontractors) assigned by the Respondent to perform work pursuant to the Contract, within the United States of America.

3.2.3. The Contractor shall provide, upon request of TWC, an electronic or hardcopy screenshot of the confirmation or tentative non-confirmation screen containing the E-Verify case verification number for attachment to the Form I-9 for the three (3) most recent hires that match the criteria above, by the Contractor, and Contractor's subcontractors, as proof that this provision is being followed.

3.2.4. If this certification is falsely made, the Contract may be immediately terminated, at the discretion of TWC and at no fault to TWC, with no prior notification. The Contractor shall also be responsible for the costs of any re-solicitation that TWC must undertake to replace the terminated Contract.

3.3. **Inducements:** that the vendor has not given, offered to give, nor intends to give at any time hereafter any economic opportunity, future employment, gift, loan, gratuity, special discount, trip, favor, or service to a public servant in connection with the submitted solicitation response

3.4. **Lobbying:** that no funds provided under the contract will be used in any way to attempt to influence in any manner a member of Congress to favor or oppose any legislation or appropriation by Congress, or for lobbying with State or local legislators.

3.5. **Not Ineligible:** that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participating in this transaction by any federal department or agency.

3.6. **Non-Discrimination:** The vendor certifies compliance with the Rehabilitation Act of 1998 § 508, 29 U.S.C. § 794d, relating to the use of electronic and information technology for individuals with disabilities; the Housing and Urban Development Act § 3, 12 USC §1701u Sec. 1701u, relating to economic opportunities for low- and very low-income persons; Titles VI and VII of the Civil Rights Act of 1964 (Public Law 88-352); Section 504 of the Rehabilitation Act of 1973 (Public Law 93-112); the Equal Opportunity Clause (Executive Order 11246) for any purchase in excess of $10,000; the Americans with Disabilities Act of 1990 (Public Law 101-336); and all amendments to each..

3.7. **Drug-Free Workplace:** The vendor agrees to provide a drug-free workplace in compliance with the Drug-Free Workplace Act of 1988 (102 Stat. 4304, P.L. 100-690, Title V, Subtitle D).

3.8. **Franchise Tax:** The vendor is not currently delinquent in the payment of any franchise tax owed to the State of Texas, pursuant to Article 2.45, Texas Business Corporation Act.

3.9. **Child Support:** The vendor is not ineligible to receive the specified grant, loan, or payment under Section 231.006 of the Texas Family Code (relating to child support) and acknowledges that the contract may be terminated and payment may be withheld if certification is inaccurate.

3.10. **Certain Bids and Contracts Prohibited:** Under Texas Government Code § 2155.004, vendor certifies that the individual or business entity named in the solicitation response is not ineligible to receive the specified contract and acknowledges that the contract may be terminated and/or payment withheld if this certification is inaccurate.

3.11. **Fair Business Practices:** The vendor has not been found guilty of unfair business practices in a judicial or state agency administrative proceeding during the preceding year. The vendor further affirms that no officer of the vendor has served as an officer of any company found guilty of unfair business practices in a judicial or state agency administrative proceeding during the preceding year.

3.12. **Antitrust:** Neither the vendor or the firm, corporation, partnership, or institution represented by the vendor, or anyone acting for same, has violated State antitrust laws or the Federal Antitrust Laws.

3.13. **No Compensation:** The vendor has not received compensation for participation in the preparation of the solicitation. This section does not prohibit a vendor or contract participant from providing free technical assistance.

3.14. **Conflict of Interest:** Vendor has disclosed any existing or potential conflict of interest relative to the performance of the contract. Failure to do so will be grounds for contract termination.

3.15. **No Collusion:** Vendor has not communicated directly or indirectly the bid made to any competitor or any other person engaged in such line of business.

3.16 **Prohibition on Certain Bids and Contracts related to Disasters and Hurricanes Katrina and Rita:** Under Texas Government Code § 2155.006, the vendor certifies that the individual or business entity named in response to this solicitation is not ineligible to receive the specified contract and acknowledges that any contract resulting from this solicitation may be terminated and payment withheld if this certification is inaccurate.

3.17. **Independent Contractor:** Vendor or vendor's employees, representatives, agents and any subcontractors shall serve as an independent contractor in providing the services under any contract resulting from this solicitation. Vendor and vendor's employees, representatives, agents and any subcontractors shall not be employees of TWC. Should vendor subcontract any of the services required in this solicitation, vendor expressly understands and acknowledges that in entering into such subcontract(s), TWC is in no manner liable to any subcontractor(s) of vendor. In no event shall this provision relieve vendor of the responsibility for ensuring that the services rendered under all subcontracts are rendered in compliance with this solicitation and any resulting contract.

3.18. **Workers' Compensation Insurance.** Vendor shall provide a Certificate of Insurance showing that a temporary employment service maintains a policy of workers' compensation insurance for all employees of the temporary employment service assigned to TWC.

3.19. **Felony Criminal Convictions:** Vendor represents and warrants that vendor has not and vendor's employees have not been convicted of a felony criminal offense, or that, if such a conviction has occurred, vendor has fully advised TWC as to the facts and circumstances surrounding the conviction.

3.20. **Executive:** Vendor certifies they are in compliance with Texas Government Code § 669.003, relating to contracting with the executive head of a State agency. If applicable, vendor will complete the following for TWC evaluation:

Former Executive Name: _____
State Agency Name: _____
Date Separated from Agency: _____
Position with vendor: _____
Date employed with vendor: _____

3.21. **Texas Bidder Affirmation Clause:** By submitting a response to this solicitation, vendor certifies that if a Texas address is shown as the address of the vendor, vendor qualifies as a Texas Bidder as defined in 34 TAC § 20.32(68).

3.22. Vendor agrees to comply with Texas Government Code § 2155.4441, pertaining to purchasing products and materials produced in the State of Texas.

3.23. Pursuant to Texas Family Code § 231.006 (c), vendor must provide the name and Social Security Number (SSN) of each person with at least 25% ownership of the business. This information must be provided prior to contract award.

SSN: _____
Name: _____
SSN: _____
Name: _____
SSN: _____
Name: _____
SSN: _____
Name: _____

4. SPECIFICATIONS

4.1. Any catalog, brand name or manufacturer's reference used in the solicitation is descriptive only (not restrictive), and is used to indicate type and quality desired. Submitted responses containing other brands that are functionally equivalent will be considered unless TWC has advertised the solicitation as proprietary under Texas Government Code § 2155.067. If vendor takes an exception to the solicitation's specifications and vendor's response contains equivalent product, vendor is required to include additional information such as manufacturer, brand or trade name, illustrations, and specifications for the equivalent product as part of their response to the solicitation. If vendor takes no exception to the specifications, the vendor must furnish the item(s) as specified in the solicitation.

4.2. Manufacturer's standard warranty shall apply unless otherwise stated in the solicitation. Written warranty is to be provided with product, and is to include the point-of-contact name, phone number, and all information needed to initiate a warranty service call.

4.3. **No Substitutions:** Vendor will not make any substitution to the specifications of any solicitation or PO, unless the substitution is (1) proposed to TWC in writing by the vendor, and (2) supported by the expressed written prior approval of TWC.

4.4. **Replacement Parts Available:** The vendor, in connection with an agreement with the manufacturer of the equipment, warrants that new or reconditioned replacement parts will be available until five (5) calendar years after the date of the award of the contract. All replacement parts must meet or exceed original manufacturer's specifications and be compatible with existing equipment.

4.5. All electrical items must meet all applicable OSHA standards and regulations, and bear the appropriate listing from Underwriters Laboratory (UL), Factory Mutual Resource Corporation (FMRC), or National Electrical Manufacturers Association (NEMA).

4.6. Vendor guarantees product offered will meet or exceed specifications; that the product is new, in current production, including the manufacturer's standard equipment and accessories; and is qualified for full maintenance coverage, service and support at, or below, the manufacturer's standard maintenance rates.

5. DELIVERY

5.1. Vendor is to show the number of days required to place material in the receiving location under normal conditions. Failure to state delivery time obligates vendor to complete delivery within fourteen (14) days. Unrealistically short or long delivery promises may cause vendor's response to be disregarded. Consistent failure to meet delivery promises will be grounds for termination of the contract.

5.2. If delay is foreseen, vendor shall give written notice to TWC who reserves the right to extend delivery date if reasons appear valid. Vendor must keep TWC advised at all times of status of order. Default in promised delivery (without accepted reasons) or failure to meet specifications authorizes TWC to purchase the ordered products elsewhere and charge full increase, if any, in cost and handling to defaulting vendor. Any damages incurred by TWC as a result of the default may also be assessed to the defaulting vendor.

5.3. Delivery shall be made on State business days between 8:00 am and 5:00 pm, unless prior approval has been obtained from TWC.

6. VALIDATION, INSPECTION & TESTS

6.1. Vendor agrees to provide TWC with information necessary to validate any statements made in the vendor's solicitation response, if requested by TWC. This may include, but is not limited to, allowing access for on-site observation, granting permission for TWC to verify information with third parties, allowing inspection of vendor's records, and allowing inspection of plans for compliance.

6.2. All goods will be subject to inspection and test by TWC to the extent practicable at all times and places. Tests may be performed on samples called for, or on samples taken from regular shipment. In the event products tested fail to meet or exceed all conditions and requirements of the specification, the cost of the sample used and the cost of the testing shall be borne by the supplier. Goods that have been delivered and rejected in whole, or in part may, at TWC's option, be returned to the vendor or held for disposition at vendor's risk and expense. Latent defects may result in revocation of acceptance.

7. INVOICING INSTRUCTIONS

7.1. Invoices must be submitted to TWC according to the instructions on the PO to the named individual and the address indicated on the PO. Invoice must show TWC as the receiving agency.

7.2. Submit invoice in duplicate. Upon request, one copy will be returned when making payment.

7.3. Invoices must include the name and address of vendor**,** which must be identical to the information stated on the PO.

7.4. The TWC PO number and date of the PO must be shown on all invoice copies.

7.5. Invoice must have description of each item. Item numbers must be shown to correspond with the item numbers on the PO.

7.6. Quantity and date delivered, unit of measure specified and total price of each item must be shown, all prices extended on the invoice, with all extensions on the invoice totaled, and the grand total shown.

7.7. Discounts, if applicable, must be stated, extended, and deducted to arrive at a Net Total for the invoice.

7.8. Trade-in values must be stated on the invoice.

8. PAYMENT

8.1. TWC will incur no penalty for late payment if payment is made within thirty (30) days of acceptance of goods or services, or within thirty (30) days of receipt of an uncontested invoice submitted according to the instructions on the PO, whichever comes last.

8.2. In no event shall use of the product by TWC, for any purpose during any phase of the acceptance testing, constitute acceptance of any product by TWC.

8.3. Prior to any payment being made, the goods or services being invoiced must have been received and accepted by TWC.

9. PATENT INFRINGEMENT

9.1. Vendor must defend, at its expense, any action brought against TWC that is based on a claim that goods supplied by the vendor, or the use of such goods, infringes a United States patent, copyright or trade secret.

9.2. Should the goods, or use of the goods, become the subject of a claim of infringement of a United States patent, copyright or trade secret**,** TWC may require the vendor to procure for TWC the right to continue using the goods, to replace or modify the same to remove the infringement, or to accept return of the goods.

9.3. Vendor agrees that for the exclusive use by TWC for State business, TWC is free to reproduce without royalty, all manuals, publications, maintenance programs, diagnostics and documentation pertaining to any product developed as a result of the contract.

10. TERMINATION PROVISIONS

10.1. TWC reserves the right to immediately terminate any PO or contract resulting from or connected to this solicitation, in whole or in part, without recourse or penalty for breach of contract by the vendor.

10.2. TWC reserves the right to terminate for convenience any PO or contract resulting from or connected to this solicitation, in whole or in part, without recourse or penalty upon TWC within thirty (30) days written notice, including but not limited to the following reasons:

10.2.1. Failure to obtain or sustain funding from either Federal or State funding sources.

10.2.2. Amendment or judicial interpretation of State or Federal laws or regulations that render fulfillment of the contract substantially unreasonable, impossible, or unnecessary.

10.3. In the event of termination of the contract due to lack of funding or for the convenience of TWC, an equitable settlement will be made based on the respective interests of the parties as of the date of termination.

10.4. TWC expressly reserves any and all legal remedies to which it may be entitled to collect related to any and all damages directly or indirectly resulting from breach of contract, by the vendor or any of its agents, representatives, subcontractors, employees, or any other party acting on behalf the vendor.

10.5. TWC shall retain ownership of all work products including deliverables, source and object code, and documentation in whatever form that they exist. In addition to any other provision, the vendor shall transfer title and deliver to the TWC any partially completed work products, deliverables, source and object code, or documentation that the vendor has produced or acquired in the performance of the contract.

11. INFORMATION TECHNOLOGY (IT) PURCHASES:

11.1. During the term of the contract, the vendor must notify TWC whenever an engineering change is made that may affect TWC's use of the product. It will be the sole option of TWC to accept the change.

11.2. Vendor represents that the product and all its elements, including, but not limited to, documentation and source code, meet the standards issued by the American National Standards Institute.

11.3. Vendor agrees that TWC owns the source code to any jointly-developed application(s) resulting from the contract.

11.4 As required by 1 TAC, Chapter 213:

11.4.1 Effective September 1, 2006State agencies shall procure products which comply with the State of Texas Accessibility requirements for Electronic and Information Resources specified in 1 TAC, Chapter 213 when such products are available in the commercial marketplace or when such products are developed in response to a procurement solicitation.

11.4.2 Vendor shall provide TWC with the URL to its Voluntary Product Accessibility Template (VPAT) for reviewing compliance with the State of Texas Accessibility requirements (based on the federal standards established under Section 508 of the Rehabilitation Act of 1973, as amended (29 USC § 794d)), or indicate that the product/services accessibility information is available from the General Services Administration "Buy Accessible Wizard" (http://www.buyaccessible.gov). Vendors not listed with the "Buy Accessible Wizard" or supplying a URL to their VPAT must provide TWC with a report that addresses the same accessibility criteria in substantively the same format. Additional information regarding the "Buy Accessible Wizard" or obtaining a copy of the VPAT is located at http://www.section 508.gov/.

11.4.3 TWC will use either VPAT or the Buy Accessible Wizard to assess the degree of accessibility of a proposed product when making the procurement decision.

11.5 Vendor shall follow Web Content and Accessibility Guidelines. (WCAG 2.0) as applicable for new websites, applications or redesigns.

11.6 Texas Health and Safety Compliance

11.6.1 Vendor hereby certifies its compliance with Subchapter Y, Chapter 361, Texas Health and Safety Code and the Texas Commission on Environmental Quality rules, 30 TAC, Chapter 328.

11.6.2 Failure of a vendor to provide this certification shall render the vendor ineligible to participate in the bidding process. TWC shall reject the related bid and not evaluate it.

11.7 Vendor agrees that all products and/or services equipped with hard disk drives (i.e. computers, telephones, printers, fax machines, scanners, multifunction devices, etc.) shall have the capability to securely erase data written to the hard drive prior to final disposition of such products and/or services, either at the end of the Customer's Managed Services product's useful life or the end of the related Customer Managed Services Agreement for such products and/ services, in accordance with 1 TAC, Chapter 202.

11.8 As required by 1 TAC § 217.12, vendors of network hardware or software, as applicable, procured or leased by a state agency must certify that the network hardware or software has undergone independent certification testing for known and relevant vulnerabilities in accordance with Section 2059.060 of the Texas Government Code. When the TWC Executive Director or his or her designated representative(s) determines that it is in the best interests of the agency to proceed with a purchase or lease of network hardware or software, he or she will grant an exemption to the required certification. Each exemption will provide a justification for the exemption, including relevant cost avoidance, reduction of undue burden, the intended usage or risk assessment of potential vulnerabilities.

12. ***NOTE TO VENDORS: Any terms and conditions attached to a vendor's solicitation response will not be considered unless the vendor specifically refers to them on the face of the first page of their response.

13. ***WARNING: Such terms and conditions may result in disqualification of the submitted vendor's response. (e.g. responses with the laws of a State other than Texas, requirements for prepayment, limitations on remedies, etc.)

Texas Workforce Commission - Request for Offers No. 2009-XXXX

ATTACHMENT 2: COST WORKSHEET

Item #	Item Description	Cost Per Unit	Number of Units	Total Cost
1	**Fill in deliverables, items, or services listed in Section 5.**			
2				
3				
4				
5				
6				
7				
8				
9				
10				
11				
12				

Additional Information as requested:

Texas Workforce Commission - Request for Offers No. 2009-XXXX

ATTACHMENT 3: VENDOR AGREEMENT

Vendor must complete the following information, sign and return this page as part of their response to this solicitation. By signing below, the vendor agrees to provide the items/services specified and to abide by all terms and conditions in this Request for Offers and in any contract resulting from an award.

Any exceptions taken to the terms and conditions as set forth in this document must be identified in detail and accompany your response to this solicitation. Any exceptions not identified in detail at the time your response is submitted will not be considered. Please complete the following: ☐ No exceptions taken OR ☐ Yes, exception taken due to (state your reason): _____

The firm, fixed price per item listed on the Cost Worksheet must remain firm, fixed pricing from the date of contract award through (mm/dd/yyyy).

_____ _____

Signature of person authorized to make this agreement | Date Signed

_____

Printed name of person signing above

3.1.1.1 VENDOR INFORMATION

Vendor Name: _____

Mailing Address: _____

3.1.2 Billing Address (if different from above) _____

City, State & Zip Code _____

Phone No./Fax No.: _____

E-Mail Address: _____

Employer Identification No. _____

Texas Identification No.

In an effort to minimize identity theft, every company/individual MUST have an Employer Identification Number (EIN), also known as a federal tax identification number prior to award of a contract. For information on obtaining your EIN, you may call 800-829-4933 or visit the following website: http://www.irs.gov/businesses/small/

The Texas Identification Number is the payee identification number assigned and used by the Texas Comptroller of Public Accounts to process payment for goods/services. Enter this number in the space provided above if number is not pre-printed. If this number is not known, please visit http://www.window.state.tx.us/taxinfo/taxforms/ap-152.pdf to set up a Texas Identification Number.

☐ Check here if you are a sole ownership or partnership and complete Section 3.21 of the TWC Terms and Conditions, Attachment I.

Texas Workforce Commission - Request for Offers No. 2009-XXXX

ATTACHMENT 4: REFERENCES

Failure to provide and include the following information with your response will result in the disqualification from further consideration for an award resulting from this solicitation.

REFERENCE 1 (Documents experience in _____)

Name of the organization to which the services were provided

Type of services provided and estimated volume.

Street address of the organization to which the service were provided City State Zip Code

Point of Contact Name Telephone Number

E-Mail Address Fax Number

REFERENCE 2 (Documents knowledge of _____)

Name of the organization to which the services were provided

Type of services provided and estimated volume.

Street address of the organization to which the service were provided City State Zip Code

Point of Contact Name Telephone Number

E-Mail Address Fax Number

REFERENCE 3 (General Reference)

Name of the organization to which the services were provided

Type of services provided and estimated volume.

Street address of the organization to which the service were provided City State Zip Code

Point of Contact Name Telephone Number

E-Mail Address Fax Number

Historically Underutilized Business (HUB) Subcontracting Plan

Information

In accordance with Texas Government Code (TGC) §2161.252 and Texas Administrative Code (TAC) Title 34, Part 1, Chapter 20, Subchapter B, Rule §20.11, each state agency (including institutions of higher education) as defined by TGC §2151.002 that considers entering into a contract with an expected value of $100,000 or more shall, before the agency solicits bids, proposals, offers, or other applicable expressions of interest, determine whether subcontracting opportunities are probable under the contract.

If subcontracting opportunities are probable, each state agency's invitation for bids or other purchase solicitation documents for construction, professional services, other services, and commodities with an expected value of $100,000 or more shall state that probability and require a HUB Subcontracting Plan (HSP).

In accordance with Texas Government Code, §2161.181 and §2161.182, each state agency shall make a good faith effort to increase the contract awards for the purchase of goods or services to HUBs based on rules adopted by the Commission.

The purpose of the HUB Program is to promote equal business opportunities for economically disadvantaged persons (as defined by TGC §2161) to contract with the State of Texas in accordance with the goals specified in the State of Texas Disparity Study. The HUB goals per 34 TAC §20.13 are: ***11.9% for heavy construction other than building contracts; 26.1% for all building construction, including general contractors and operative builders contracts; 57.2% for all special trade construction contracts; 20% for professional services contracts; 33% for all other services contracts; and 12.6% for commodities contracts.***

IF YOUR RESPONSE TO THIS SOLICITATION DOES NOT CONTAIN A HUB SUBCONTRACTING PLAN, YOUR RESPONSE SHALL BE REJECTED AS A MATERIAL FAILURE TO COMPLY WITH THE ADVERTISED SPECIFICATIONS.

INSTRUCTIONS

1. **HUB Subcontracting Plan (HSP) Development and Good Faith Effort Requirements** – All respondents (HUBs and non-HUBs) submitting bids, proposals, offers, or other applicable expressions of interest must follow, but are not limited to, the following procedures when developing a HUB Subcontracting Plan (HSP):

12 The respondent shall divide the contract work into reasonable lots or portions to the extent consistent with prudent industry practices.

13 The respondent shall use the Texas Comptroller of Public Accounts' (CPA's) Centralized Master Bidders List (CMBL), the HUB Directory, and may use other Internet resources and directories as identified by the contracting agency to identify HUBs that perform the type of work required for each subcontracting opportunity identified in the contract specifications or any other subcontracting opportunity the respondent cannot complete with its own equipment, supplies, materials, and/or employees.

Note: The contracting agency does not endorse any company or individual identified on any listings/directories included or referenced herein. A complete list of all State of Texas certified HUBs on the CMBL may be accessed via the Internet at: http://www2.cpa.state.tx.us/cmbl/cmblhub.html

c. The respondent shall provide notice to **three (3) or more HUBs** that perform the type of work required for **each** subcontracting opportunity identified in the contract specifications or any other subcontracting opportunity the respondent cannot complete with its own equipment, supplies, materials, and/or employees. In addition, the respondent shall provide notice of subcontracting opportunities to minority or women trade organizations or development centers to assist in identifying potential HUBs.

The preferable method of notification to HUBs and minority or women trade organizations or development centers shall be in writing and, as applicable, include: the scope of the work; information regarding the location to review plans and specifications; information about bonding and insurance requirements; information about required qualifications and specifications; and identify a contact person.

d. Unless circumstances require a different time period that shall be specified by the contracting agency and documented in the agency's contract file, the respondent's subcontracting opportunity notice(s) must be provided to the potential HUB subcontractors, and minority or women trade organizations or development centers no less than five (5) working days prior to the submission of the respondent's bid, proposal, offer, or other applicable expression of interest to the contracting agency.

e. On forms provided by the contracting agency and prescribed by CPA, the respondent shall document the HUBs they contacted regarding their subcontracting opportunities. The respondent should negotiate in good faith with qualified HUBs, not rejecting qualified HUBs who were the best value responsive bidder to their subcontracting opportunities.

f. The respondent shall provide written justification of the selection process if a HUB subcontractor is **not** selected.

g. Prior to contract award, the respondent shall provide the contracting agency with supporting documentation (phone logs, fax transmittals, electronic mail, etc.) to document their good faith effort in the development and submission of their HSP.

3 **Alternatives to Good Faith Effort Requirements** ***(Applicable to Mentor Protégé Agreements and Professional Services Contracts Only):***

a. A respondent's participation as a Mentor in a State of Texas Mentor Protégé Agreement and a commitment to use their Protégé (All Protégé's must be State of Texas HUB certified) as a subcontractor to perform the subcontracting opportunity(ies) listed in its HSP (Texas Government Code, Chapter 2161.065) may constitute good faith effort without performing the procedures listed in **Item 1.** *For additional information, please contact the HUB Coordinator for the contracting agency.*

b. A respondent who submits an HSP for a professional services contract that meets or exceeds Annual Procurement Utilization goals for Historically Underutilized Businesses (HUBs) as defined in Texas Administrative Code, § 20.13, will be determined to have met the good faith effort requirement.

(Applicable to Professional Services Contracts as defined by Texas Government Code 2254.)

3. **HUB Subcontracting Plan Reporting and Contract Compliance** – The contracting agency will receive HUB credit for the total amount of expenditures made directly to prime contractors who are State of Texas HUB certified. In addition, if the prime contractor is not a HUB, agencies will receive HUB credit for the total amount of expenditures the prime contractor makes to HUB subcontractors, if applicable. All prime contractors (HUBs and non-HUBs) are required to comply with the following reporting and contract compliance procedures:

a. Prime contractors shall report to the contracting agency their use of HUB subcontractors to fulfill the subcontracting opportunities identified in their HSP (See Prime Contractor Progress Assessment Report at *http://www.window.state.tx.us/procurement/prog/hub/hub-subcontracting-plan/.*

b. Prime contractors shall notify the contracting agency and obtain prior approval before any changes can be made to its HSP. The proposed changes must comply with the good faith effort requirements related to developing and submitting a HSP as described in Item 1, or if applicable, Item 2 above.

c. The contracting agency will determine if the value of subcontracts to HUBs meet or exceed the HUB subcontracting provisions specified in the prime contractor's HSP. If the contracting agency determines that the prime contractor's subcontracting activity does not demonstrate a good faith effort, the prime contractor may be subjected to provisions in the Vendor Performance and Debarment Program (34 TAC, Part 1, Chapter 20, Subchapter B).

4. Special Instructions/Additional Requirements, as applicable when specified by the contracting agency: TWC REQUIRES THAT ANY PRIME VENDOR, BOTH HUB AND NON-HUB, WHO SUBMITS THE SELF-PERFORMANCE HSP MUST PROVIDE ALL SUPPLIES, ALL SERVICES, ALL EQUIPMENT AND MATERIALS, AND ALL EMPLOYEES THEMSELVES. THE USE OF 1099 EMPLOYEES IS A VIOLATION OF THE SELF-PERFORMANCE HSP. PURCHASING SUPPLIES SPECIFICALLY FOR THIS CONTRACT IS A VIOLATION OF THE SELF-PERFORMANCE HSP. VIOLATION OF THE SELF-PERFORMANCE HSP IS A CONTRACT VIOLATION AND MAY BE SUBJECT TO CONTRACT TERMINATION PROCEDURES.

Rev. 09/15

HUB Subcontracting Plan (HSP)

QUICK CHECKLIST

While this HSP Quick Checklist is being provided to merely assist you in readily identifying the sections of the HSP form that you will need to complete, it is very important that you adhere to the instructions in the HSP form and instructions provided by the contracting agency.

➤ If you will be awarding all of the subcontracting work you have to offer under the contract to only Texas certified HUB vendors, complete:

- ☐ Section 1 - Respondent and Requisition Information
- ☐ Section 2 a. - Yes, I will be subcontracting portions of the contract.
- ☐ Section 2 b. - List all the portions of work you will subcontract, and indicate the percentage of the contract you expect to award to Texas certified HUB vendors.
- ☐ Section 2 c. - Yes
- ☐ Section 4 - Affirmation
- ☐ GFE Method A (Attachment A) - Complete an Attachment A for each of the subcontracting opportunities you listed in Section 2 b.

➤ If you will be subcontracting any portion of the contract to Texas certified HUB vendors and Non-HUB vendors, and the aggregate percentage of all the subcontracting work you will be awarding to the Texas certified HUB vendors with which you do not have a *continuous contract** in place for more than five (5) years *meets or exceeds* the HUB Goal the contracting agency identified in the "Agency Special Instructions/Additional Requirements", complete:

- ☐ Section 1 - Respondent and Requisition Information
- ☐ Section 2 a. - Yes, I will be subcontracting portions of the contract.
- ☐ Section 2 b. - List all the portions of work you will subcontract, and indicate the percentage of the contract you expect to award to Texas certified HUB vendors and Non-HUB vendors.
- ☐ Section 2 c. - No
- ☐ Section 2 d. - Yes
- ☐ Section 4 - Affirmation
- ☐ GFE Method A (Attachment A) - Complete an Attachment A for each of the subcontracting opportunities you listed in Section 2 b.

➤ If you will be subcontracting any portion of the contract to Texas certified HUB vendors and Non-HUB vendors or only to Non-HUB vendors, and the aggregate percentage of all the subcontracting work you will be awarding to the Texas certified HUB vendors with which you do not have a *continuous contract** in place for more than five (5) years does not *meet or exceed* the HUB Goal the contracting agency identified in the "Agency Special Instructions/Additional Requirements", complete:

- ☐ Section 1 - Respondent and Requisition Information
- ☐ Section 2 a. - Yes, I will be subcontracting portions of the contract.
- ☐ Section 2 b. - List all the portions of work you will subcontract, and indicate the percentage of the contract you expect to award to Texas certified HUB vendors and Non-HUB vendors.
- ☐ Section 2 c. - No
- ☐ Section 2 d. - No
- ☐ Section 4 - Affirmation
- ☐ GFE Method B (Attachment B) - Complete an Attachment B for each of the subcontracting opportunities you listed in Section 2 b.

➤ If you will not be subcontracting any portion of the contract and will be fulfilling the entire contract with your own resources (i.e., employees, supplies, materials and/or equipment, including transportation and delivery), complete:

- ☐ Section 1 - Respondent and Requisition Information
- ☐ Section 2 a. - No, I will not be subcontracting any portion of the contract, and I will be fulfilling the entire contract with my own resources.
- ☐ Section 3 - Self Performing Justification
- ☐ Section 4 - Affirmation

***Continuous Contract**: Any existing written agreement (including any renewals that are exercised) between a prime contractor and a HUB vendor, where the HUB vendor provides the prime contractor with goods or service, to include transportation and delivery under the same contract for a specified period of time. The frequency the HUB vendor is utilized or paid during the term of the contract is not relevant to whether the contract is considered continuous. Two or more contracts that run concurrently or overlap one another for different periods of time are considered by CPA to be individual contracts rather than renewals or extensions to the original contract. In such situations the prime contractor and HUB vendor are entering (have entered) into "new" contracts.*

HUB Subcontracting Plan (HSP)

In accordance with Texas Gov't Code §2161.252, the contracting agency has determined that subcontracting opportunities are probable under this contract. Therefore, all respondents, including State of Texas certified Historically Underutilized Businesses (HUBs) must complete and submit this State of Texas HUB Subcontracting Plan (HSP) with their response to the bid requisition (solicitation).

NOTE: Responses that do not include a completed HSP shall be rejected pursuant to Texas Gov't Code §2161.252(b).

The HUB Program promotes equal business opportunities for economically disadvantaged persons to contract with the State of Texas in accordance with the goals specified in the 2009 State of Texas Disparity Study. The statewide HUB goals defined in 34 Texas Administrative Code (TAC) §20.13 are:

- ***11.2 percent for heavy construction other than building contracts,***
- ***21.1 percent for all building construction, including general contractors and operative builders' contracts,***
- ***32.9 percent for all special trade construction contracts,***
- ***23.7 percent for professional services contracts,***
- ***26.0 percent for all other services contracts, and***
- ***21.1 percent for commodities contracts.***

- - Agency Special Instructions/Additional Requirements - -

In accordance with 34 TAC §20.14(d)(1)(D)(iii), a respondent (prime contractor) may demonstrate good faith effort to utilize Texas certified HUBs for its subcontracting opportunities if the total value of the respondent's subcontracts with Texas certified HUBs meets or exceeds the statewide HUB goal or the agency specific HUB goal, whichever is higher. When a respondent uses this method to demonstrate good faith effort, the respondent must identify the HUBs with which it will subcontract. If using existing contracts with Texas certified HUBs to satisfy this requirement, only the aggregate percentage of the contracts expected to be subcontracted to HUBs with which the respondent does not have a continuous contract* in place for more than five (5) years shall qualify for meeting the HUB goal. This limitation is designed to encourage vendor rotation as recommended by the 2009 Texas Disparity Study.

SECTION-1: RESPONDENT AND REQUISITION INFORMATION

a. Respondent (Company) Name: _____ State of Texas VID #: _____

Point of Contact: _____ Phone #: _____

E-mail Address: _____ Fax #: _____

b. Is your company a State of Texas certified HUB? ☐ - Yes ☐ - No

c. Requisition #: _____ Bid Open Date: _____ (mm/dd/yyyy)

Enter your company's name here: _____ Requisition #: _____

SECTION-2: RESPONDENT'S SUBCONTRACTING INTENTIONS

After dividing the contract work into reasonable lots or portions to the extent consistent with prudent industry practices, and taking into consideration the scope of work to be performed under the proposed contract, including all potential subcontracting opportunities, the respondent must determine what portions of work, **including contracted staffing, goods, services, transportation and delivery will be subcontracted**. Note: In accordance with 34 TAC §20.11, a "Subcontractor" means a person who contracts with a prime contractor to work, to supply commodities, or to contribute toward completing work for a governmental entity.

a. Check the appropriate box (Yes or No) that identifies your subcontracting intentions:

☐ -*Yes*, I will be subcontracting portions of the contract. (If *Yes*, complete Item b of this SECTION and continue to Item c of this SECTION.)

☐ -*No*, I will not be subcontracting any portion of the contract, and I will be fulfilling the entire contract with my own resources, including employees, goods, services, transportation and delivery. (If *No*, continue to SECTION 3 and SECTION 4.)

b. List all the portions of work (subcontracting opportunities) you will subcontract. Also, based on the total value of the contract, identify the percentages of the contract you expect to award to Texas certified HUBs, and the percentage of the contract you expect to award to vendors that are not a Texas certified HUB (i.e., Non-HUB).

Item #	Subcontracting Opportunity Description	HUBs		Non-HUBs
		Percentage of the contract expected to be subcontracted to HUBs with which you do not have a continuous contract* in place for more than five (5) years.	Percentage of the contract expected to be subcontracted to HUBs with which you have a continuous contract* in place for more than five (5) years.	Percentage of the contract expected to be subcontracted to non-HUBs.
1		%	%	%
2		%	%	%
3		%	%	%
4		%	%	%
5		%	%	%
6		%	%	%
7		%	%	%
8		%	%	%
9		%	%	%
10		%	%	%
11		%	%	%
12		%	%	%
13		%	%	%
14		%	%	%
15		%	%	%
Aggregate percentages of the contract expected to be subcontracted:		%	%	%

(Note: If you have more than fifteen subcontracting opportunities, a continuation sheet is available online at http://window.state.tx.us/procurement/prog/hub/hub-subcontracting-plan/).

c. Check the appropriate box (Yes or No) that indicates whether you will be using only Texas certified HUBs to perform all of the subcontracting opportunities you listed in SECTION 2, Item b.

◉ *Yes* (If *Yes*, continue to SECTION 4 and complete an "HSP Good Faith Effort - Method A (Attachment A)" for each of the subcontracting opportunities you listed.)

☐ *No* (If *No*, continue to Item d, of this SECTION.)

d. Check the appropriate box (Yes or No) that indicates whether the aggregate expected percentage of the contract you will subcontract with Texas certified HUBs with which you do not have a continuous contract* in place with for more than five (5) years, meets or exceeds the HUB goal the contracting agency identified on page 1 in the "Agency Special Instructions/Additional Requirements."

◉ - *Yes* (If *Yes*, continue to SECTION 4 and complete an "HSP Good Faith Effort - Method A (Attachment A)" for each of the subcontracting opportunities you listed.)

☐ - *No* (If *No*, continue to SECTION 4 and complete an "HSP Good Faith Effort - Method B (Attachment B)" for each of the subcontracting opportunities you listed.)

***Continuous Contract**: Any existing written agreement (including any renewals that are exercised) between a prime contractor and a HUB vendor, where the HUB vendor provides the prime contractor with goods or service, to include transportation and delivery under the same contract for a specified period of time. The frequency the HUB vendor is utilized or paid during the term of the contract is not relevant to whether the contract is considered continuous. Two or more contracts that run concurrently or overlap one another for different periods of time are considered by CPA to be individual contracts rather than renewals or extensions to the original contract. In such situations the prime contractor and HUB vendor are entering (have entered) into "new" contracts.*

Enter your company's name here: _____ Requisition #: _____

SECTION-2: RESPONDENT'S SUBCONTRACTING INTENTIONS (CONTINUATION SHEET)

This page can be used as a continuation sheet to the HSP Form's page 2, Section 2, Item b. Continue listing the portions of work (subcontracting opportunities) you will subcontract. Also, based on the total value of the contract, identify the percentages of the contract you expect to award to Texas certified HUBs, and the percentage of the contract you expect to award to vendors that are not a Texas certified HUB (i.e., Non-HUB).

Item #	Subcontracting Opportunity Description	HUBs		Non-HUBs
		Percentage of the contract expected to be subcontracted to HUBs with which you do not have a continuous contract* in place for more than five (5) years.	Percentage of the contract expected to be subcontracted to HUBs with which you have a continuous contract* in place for more than five (5) years.	Percentage of the contract expected to be subcontracted to non-HUBs.
16		%	%	%
17		%	%	%
18		%	%	%
19		%	%	%
20		%	%	%
21		%	%	%
22		%	%	%
23		%	%	%
24		%	%	%
25		%	%	%
26		%	%	%
27		%	%	%
28		%	%	%
29		%	%	%
30		%	%	%
31		%	%	%
32		%	%	%
33		%	%	%
34		%	%	%
35		%	%	%
36		%	%	%
37		%	%	%
38		%	%	%
39		%	%	%
40		%	%	%
41		%	%	%
42		%	%	%
43		%	%	%
44		%	%	%
45		%	%	%
Aggregate percentages of the contract expected to be subcontracted:		%	%	%

***Continuous Contract**: Any existing written agreement (including any renewals that are exercised) between a prime contractor and a HUB vendor, where the HUB vendor provides the prime contractor with goods or service, to include transportation and delivery under the same contract for a specified period of time. The frequency the HUB vendor is utilized or paid during the term of the contract is not relevant to whether the contract is considered continuous. Two or more contracts that run concurrently or overlap one another for different periods of time are considered by CPA to be individual contracts rather than renewals or extensions to the original contract. In such situations the prime contractor and HUB vendor are entering (have entered) into "new" contracts.*

Enter your company's name here: _____ Requisition #: _____

SECTION-3: SELF PERFORMING JUSTIFICATION (If you responded "No" to SECTION 2, Item a, you must complete this SECTION and continue to SECTION 4.)

If you responded "No" to SECTION 2, Item a, in the space provided below explain how your company will perform the entire contract with its own employees, supplies, materials and/or equipment, to include transportation and delivery.

SECTION-4: AFFIRMATION

As evidenced by my signature below, I affirm that I am an authorized representative of the respondent listed in SECTION 1, and that the information and supporting documentation submitted with the HSP is true and correct. Respondent understands and agrees that, if awarded any portion of the requisition:

- The respondent will provide notice as soon as practical to all the subcontractors (HUBs and Non-HUBs) of their selection as a subcontractor for the awarded contract. The notice must specify at a minimum the contracting agency's name and its point of contact for the contract, the contract award number, the subcontracting opportunity they (the subcontractor) will perform, the approximate dollar value of the subcontracting opportunity and the expected percentage of the total contract that the subcontracting opportunity represents. A copy of the notice required by this section must also be provided to the contracting agency's point of contact for the contract no later than ten (10) working days after the contract is awarded.
- The respondent must submit monthly compliance reports (Prime Contractor Progress Assessment Report – PAR) to the contracting agency, verifying its compliance with the HSP, including the use of and expenditures made to its subcontractors (HUBs and Non-HUBs). (The PAR is available at http://www.window.state.tx.us/procurement/prog/hub/hub-forms/progressassessmentrpt.xls).
- The respondent must seek approval from the contracting agency prior to making any modifications to its HSP, including the hiring of additional or different subcontractors and the termination of a subcontractor the respondent identified in its HSP. If the HSP is modified without the contracting agency's prior approval, respondent may be subject to any and all enforcement remedies available under the contract or otherwise available by law, up to and including debarment from all state contracting.
- The respondent must, upon request, allow the contracting agency to perform on-site reviews of the company's headquarters and/or work-site where services are being performed and must provide documentation regarding staffing and other resources.

Signature	Printed Name	Title	Date (mm/dd/yyyy)

Reminder:

- If you responded "Yes" to SECTION 2, Items c or d, you must complete an "HSP Good Faith Effort - Method A (Attachment A)" for each of the subcontracting opportunities you listed in SECTION 2, Item b.
- If you responded "No" SECTION 2, Items c and d, you must complete an "HSP Good Faith Effort - Method B (Attachment B)" for each of the subcontracting opportunities you listed in SECTION 2, Item b.

HSP Good Faith Effort - Method A (Attachment A)

Rev. 09/15

Enter your company's name here: _____ Requisition #: _____

IMPORTANT: If you responded "*Yes*" to **SECTION 2, Items c** or **d** of the completed HSP form, you must submit a completed "HSP Good Faith Effort - Method A (Attachment A)" for each of the subcontracting opportunities you listed in **SECTION 2, Item b** of the completed HSP form. You may photo-copy this page or download the form at http://window.state.tx.us/procurement/prog/hub/hub-forms/hub-sbcont-plan-gfe-achm-a.pdf

SECTION A-1: SUBCONTRACTING OPPORTUNITY

Enter the item number and description of the subcontracting opportunity you listed in SECTION 2, Item b, of the completed HSP form for which you are completing the attachment.

Item Number: _____ Description: _____

SECTION A-2: SUBCONTRACTOR SELECTION

List the subcontractor(s) you selected to perform the subcontracting opportunity you listed above in SECTION A-1. Also identify whether they are a Texas certified HUB and their Texas Vendor Identification (VID) Number or federal Employer Identification Number (EIN), the approximate dollar value of the work to be subcontracted, and the expected percentage of work to be subcontracted. When searching for Texas certified HUBs and verifying their HUB status, ensure that you use the State of Texas' Centralized Master Bidders List (CMBL) - Historically Underutilized Business (HUB) Directory Search located at http://mycpa.cpa.state.tx.us/tpasscmblsearch/index.jsp. HUB status code "A" signifies that the company is a Texas certified HUB.

Company Name	Texas certified HUB	Texas VID or federal EIN Do not enter Social Security Numbers. If you do not know their VID / EIN, leave their VID / EIN field blank.	Approximate Dollar Amount	Expected Percentage of Contract
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%

REMINDER: As specified in SECTION 4 of the completed HSP form, if you (respondent) are awarded any portion of the requisition, you are required to provide notice as soon as practical to **all** the subcontractors (HUBs and Non-HUBs) of their selection as a subcontractor. The notice must specify at a minimum the contracting agency's name and its point of contact for the contract, the contract award number, the subcontracting opportunity they (the subcontractor) will perform, the approximate dollar value of the subcontracting opportunity and the expected percentage of the total contract that the subcontracting opportunity represents. A copy of the notice required by this section must also be provided to the contracting agency's point of contact for the contract no later than ten (10) working days after the contract is awarded.

HSP Good Faith Effort - Method B (Attachment B)

Rev. 09/15

Enter your company's name here: _____ Requisition #: _____

IMPORTANT*:** If you responded "No***" to **SECTION 2, Items c** and **d** of the completed HSP form, you must submit a completed "HSP Good Faith Effort - Method B (Attachment B)" for **each** of the subcontracting opportunities you listed in **SECTION 2, Item b** of the completed HSP form. You may photo-copy this page or download the form at http://window.state.tx.us/procurement/prog/hub/hub-forms/hub-sbcont-plan-gfe-achm-b.pdf.

SECTION B-1: SUBCONTRACTING OPPORTUNITY

Enter the item number and description of the subcontracting opportunity you listed in SECTION 2, Item b, of the completed HSP form for which you are completing the attachment.

Item Number: _____ Description: _____

SECTION B-2: MENTOR PROTÉGÉ PROGRAM

If respondent is participating as a Mentor in a State of Texas Mentor Protégé Program, submitting its Protégé (Protégé must be a State of Texas certified HUB) as a subcontractor to perform the subcontracting opportunity listed in SECTION B-1, constitutes a good faith effort to subcontract with a Texas certified HUB towards that specific portion of work.

Check the appropriate box (Yes or No) that indicates whether you will be subcontracting the portion of work you listed in SECTION B-1 to your Protégé.

☐ - Yes (If *Yes*, continue to SECTION B-4.)
☐ - No / Not Applicable (If *No* or *Not Applicable*, continue to SECTION B-3 and SECTION B-4.)

SECTION B-3: NOTIFICATION OF SUBCONTRACTING OPPORTUNITY

When completing this section you MUST comply with items a, b, c and d, thereby demonstrating your Good Faith Effort of having notified Texas certified HUBs and trade organizations or development centers about the subcontracting opportunity you listed in SECTION B-1. Your notice should include the scope of work, information regarding the location to review plans and specifications, bonding and insurance requirements, required qualifications, and identify a contact person. When sending notice of your subcontracting opportunity, you are encouraged to use the attached HUB Subcontracting Opportunity Notice form, which is also available online at http://www.window.state.tx.us/procurement/prog/hub/hub-subcontracting-plan.

Retain supporting documentation (i.e., certified letter, fax, e-mail) demonstrating evidence of your good faith effort to notify the Texas certified HUBs and trade organizations or development centers. Also, be mindful that a working day is considered a normal business day of a state agency, not including weekends, federal or state holidays, or days the agency is declared closed by its executive officer. The initial day the subcontracting opportunity notice is sent/provided to the HUBs and to the trade organizations or development centers is considered to be "day zero" and does not count as one of the seven (7) working days.

a. Provide written notification of the subcontracting opportunity you listed in SECTION B-1, to three (3) or more Texas certified HUBs. Unless the contracting agency specified a different time period, you must allow the HUBs at least seven (7) working days to respond to the notice prior to you submitting your bid response to the contracting agency. When searching for Texas certified HUBs and verifying their HUB status, ensure that you use the State of Texas' Centralized Master Bidders List (CMBL) and Historically Underutilized Business (HUB) Search directory located at http://mycpa.cpa.state.tx.us/tpasscmblsearch/index.jsp. HUB Status code "A" signifies that the company is a Texas certified HUB.

b. List the three (3) Texas certified HUBs you notified regarding the subcontracting opportunity you listed in SECTION B-1. Include the company's Texas Vendor Identification (VID) number, the date you sent notice to that company, and indicate whether it was responsive or non-responsive to your subcontracting opportunity notice.

Company Name	Texas VID (Do not enter Social Security Numbers.)	Date Notice Sent (mm/dd/yyyy)	Did the HUB Respond?
			☐ - Yes ☐ - No
			☐ - Yes ☐ - No
			☐ - Yes ☐ - No

c. Provide written notification of the subcontracting opportunity you listed in SECTION B-1 to two (2) or more trade organizations or development centers in Texas to assist in identifying potential HUBs by disseminating the subcontracting opportunity to their members/participants. Unless the contracting agency specified a different time period, you must provide your subcontracting opportunity notice to trade organizations or development centers at least seven (7) working days prior to submitting your bid response to the contracting agency. A list of trade organizations and development centers that have expressed an interest in receiving notices of subcontracting opportunities is available on the Statewide HUB Program's webpage at http://www.window.state.tx.us/procurement/prog/hub/mwb-links-1/.

d. List two (2) trade organizations or development centers you notified regarding the subcontracting opportunity you listed in SECTION B-1. Include the date when you sent notice to it and indicate if it accepted or rejected your notice.

Trade Organizations or Development Centers	Date Notice Sent (mm/dd/yyyy)	Was the Notice Accepted?
		☐ - Yes ☐ - No
		☐ - Yes ☐ - No

HSP Good Faith Effort - Method B (Attachment B) Cont.

Rev. 09/15

Enter your company's name here: _____ Requisition #: _____

SECTION B-4: SUBCONTRACTOR SELECTION

Enter the item number and description of the subcontracting opportunity you listed in **SECTION 2, Item b,** of the completed HSP form for which you are completing the attachment.

a. Enter the item number and description of the subcontracting opportunity for which you are completing this Attachment B continuation page.

Item Number: _____ Description: _____

b. List the subcontractor(s) you selected to perform the subcontracting opportunity you listed above in SECTION B-1. Also identify whether they are a Texas certified HUB and their Texas Vendor Identification (VID) Number or federal Employer Identification Number (EIN), the approximate dollar value of the work to be subcontracted, and the expected percentage of work to be subcontracted. When searching for Texas certified HUBs and verifying their HUB status, ensure that you use the State of Texas' Centralized Master Bidders List (CMBL) - Historically Underutilized Business (HUB) Directory Search located at http://mycpa.cpa.state.tx.us/tpasscmblsearch/index.jsp. HUB status code "A" signifies that the company is a Texas certified HUB.

Company Name	Texas certified HUB	Texas VID or federal EIN Do not enter Social Security Numbers. If you do not know their VID / EIN, leave their VID / EIN field blank.	Approximate Dollar Amount	Expected Percentage of Contract
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%
	☐ - Yes ☐ - No		$	%

c. If any of the subcontractors you have selected to perform the subcontracting opportunity you listed in SECTION B-1 is not a Texas certified HUB, provide written justification for your selection process (attach additional page if necessary):

REMINDER: As specified in SECTION 4 of the completed HSP form, if you (respondent) are awarded any portion of the requisition, you are required to provide notice as soon as practical to all the subcontractors (HUBs and Non-HUBs) of their selection as a subcontractor. The notice must specify at a minimum the contracting agency's name and its point of contact for the contract, the contract award number, the subcontracting opportunity it (the subcontractor) will perform, the approximate dollar value of the subcontracting opportunity and the expected percentage of the total contract that the subcontracting opportunity represents. A copy of the notice required by this section must also be provided to the contracting agency's point of contact for the contract no later than ten (10) working days after the contract is awarded.

Rev. 09/15

HUB Subcontracting Opportunity Notification Form

In accordance with Texas Gov't Code, Chapter 2161, each state agency that considers entering into a contract with an expected value of $100,000 or more shall, before the agency solicits bids, proposals, offers, or other applicable expressions of interest, determine whether subcontracting opportunities are probable under the contract. The state agency I have identified below in Section B has determined that subcontracting opportunities are probable under the requisition to which my company will be responding.

34 Texas Administrative Code, §20.14 requires all respondents (prime contractors) bidding on the contract to provide notice of each of their subcontracting opportunities to at least three (3) Texas certified HUBs (who work within the respective industry applicable to the subcontracting opportunity), and allow the HUBs at least seven (7) working days to respond to the notice prior to the respondent submitting its bid response to the contracting agency. In addition, at least seven (7) working days prior to submitting its bid response to the contracting agency, the respondent must provide notice of each of its subcontracting opportunities to two (2) or more trade organizations or development centers (in Texas) that serves members of groups (i.e., Asian Pacific American, Black American, Hispanic American, Native American, Woman, Service Disabled Veteran) identified in Texas Administrative Code, §20.11(19)(C).

We respectfully request that vendors interested in bidding on the subcontracting opportunity scope of work identified in Section C, Item 2, reply no later than the date and time identified in Section C, Item 1. Submit your response to the point-of-contact referenced in Section A.

SECTION A: PRIME CONTRACTOR'S INFORMATION

Company Name: _____ State of Texas VID #: _____

Point-of-Contact: _____ Phone #: _____

E-mail Address: _____ Fax #: _____

SECTION B: CONTRACTING STATE AGENCY AND REQUISITION INFORMATION

Agency Name: _____

Point-of-Contact: _____ Phone #: _____

Requisition #: _____ Bid Open Date: _____ (mm/dd/yyyy)

SECTION C: SUBCONTRACTING OPPORTUNITY RESPONSE DUE DATE, DESCRIPTION, REQUIREMENTS AND RELATED INFORMATION

1. Potential Subcontractor's Bid Response Due Date:

If you would like for our company to consider your company's bid for the subcontracting opportunity identified below in Item 2, we must receive your bid response no later than _____ (Central Time) on _____ (Date mm/dd/yyyy).

In accordance with 34 TAC §20.14, each notice of subcontracting opportunity shall be provided to at least three (3) Texas certified HUBs, and allow the HUBs at least seven (7) working days to respond to the notice prior to submitting our bid response to the contracting agency. In addition, at least seven (7) working days prior to us submitting our bid response to the contracting agency, we must provide notice of each of our subcontracting opportunities to two (2) or more trade organizations or development centers (in Texas) that serves members of groups (i.e., Asian Pacific American, Black American, Hispanic American, Native American, Woman, Service Disabled Veteran) identified in Texas Administrative Code, §20.11(19)(C).

(A working day is considered a normal business day of a state agency, not including weekends, federal or state holidays, or days the agency is declared closed by its executive officer. The initial day the subcontracting opportunity notice is sent/provided to the HUBs and to the trade organizations or development centers is considered to be "day zero" and does not count as one of the seven (7) working days.)

2. Subcontracting Opportunity Scope of Work:

3. Required Qualifications: ☐ - Not Applicable

4. Bonding/Insurance Requirements: ☐ - Not Applicable

5. Location to review plans/specifications: ☐ - Not Applicable

HUB Subcontracting Plan (HSP)
Prime Contractor Progress Assessment Report

Rev. 09/15

This form must be completed and submitted to the contracting agency each month to document compliance with your HSP.

Contract/Requisition Number: _____ Date of Award: _____ Object Code: _____

Contracting Agency/University Name: _____

Contractor (Company) Name: _____ State of Texas VID #: _____

Point of Contact: _____ Phone #: _____

Reporting (Month) Period: _____ Total Amount Paid this Reporting Period to Contractor: $ _____ -

Report HUB and Non-HUB subcontractor information

When verifying subcontractors' HUB status, ensure that you use the State of Texas Centralized Master Bidders List (CMBL) - Historically Underutilized (HUB)

Directory Search located at: https://mycpa.cpa.state.tx.us/tpasscmblsearch/index.jsp **HUB status code "A" signifies that the company is a Texas certified HUB.**

Subcontractor's Name	Texas certified HUB? (Yes or No)	Texas VID or federal EIN Do not enter Social Security Number. If you do not know their VID/EIN leave VID/EIN field blank	Total Contract $ Amount from HSP with Subcontractor	Total $ Amount Paid this Reporting Period to Subcontractor	Total Contract $ Amount Paid to Date to Subcontractor	Object Code (Agency Use Only)
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
			$ -	$ -	$ -	
		TOTALS:	$ -	$ -	$ -	

Signature: _____ **Title:** _____ **Date:** _____